

New York Chicken Slaughter Decision Won't Be Reviewed

June 1, 2019 Rob Boston (<https://www.au.org/about-au/people/rob-boston/>)



A ruling by New York's highest court allowing Orthodox Jews to continue slaughtering chickens as part of a religious ritual will not be subject to further judicial review.

The U.S. Supreme Court announced in late May that it will not hear an appeal of the case *Alliance to End Chickens as Kaporos v. New York City Police Department*. The lawsuit was brought in 2015 by animal-rights activists who sued the New York City Police Department seeking to compel it to enforce several city laws that govern health, safety and animal-cruelty.

During a practice called kaporos, Orthodox Jews swing a live chicken over their heads before slitting its throat in an atonement ritual. Thousands of chickens are killed during the ritual, which takes place before Yom Kippur.

In November 2018, the New York Court of Appeals, the top court in the state, ruled that police could use discretion in deciding how aggressively to enforce the laws, since the chicken slaughter is religious in nature.

Animal-rights activists expressed disappointment over that ruling.

"It's disturbing that the city continues to turn a blind eye to 15 laws being violated," Nora Constance Marino, an attorney for the Alliance to End Chickens as Kaporos, told WABC-TV. "We are disappointed that the court did not exercise their judicial power to right this wrong, and we continue to explore other legal remedies."

The Supreme Court's decision not to hear another appeal brings the case to a close.



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